

UNITED GYPSUM (PVT) LTD DEALERSHIP APPLICATION FORM

Firm / Business	Name:	
Showroom size:	Address:	
Main Road: Yes / No		
Phone / Fax/Mobile:		
Email Address:		
Company Type	Proprietorship / Partnership / Private Limited / Limited	
Prop./ Partner/Director		
NTN / CNIC Number:		
Number of Employees:	Sales:	Sub Dealers:
PLEASE NEVER GIVE CASH TO ANY EMPLOYEE FOR ANY REASON. UNITED GYPSUM IS NOT LIABLE FOR ANY CASH TRANSACTION BY YOU. ALL PAYMENTS MUST BE MADE BY BANK CHEQUE / DRAFT / DIRECT-DEPOSIT INTO UNITED GYPSUM BANK ACCOUNT ONLY.		

CERTIFICATION

I hereby certify that the information contained in this sheet and all attachments hereto are true and correct to the best of my knowledge and hereby authorize UNITED GYPSUM (PVT) LTD. to check all information contained herein by whatever means UNITED GYPSUM (PVT) LTD. finds appropriate. I understand that any falsification of documents and any fraudulent information or misrepresentation will serve as grounds for nullification of this application. Upon signing this Application, I also agree to the terms and conditions of this contract as stated on the second and third pages of this form.

Signature & Stamp: _____ Date : _____

FOR OFFICE USE ONLY		
AUTHORIZED PERSONNEL	NAME & SIGNATURE	REMARKS
Marketing Manager:		
Director / G.M		Approved / Rejected / Pending Clarification
Category	< > Distributor < > Dealer	Territory Approval:

TERMS AND CONDITIONS FOR DEALERS

1. TERM & EFFECTIVITY

1. This contract shall be valid for a period of one (1) year effective from the date of signing by both parties.

2. RESPONSIBILITES OF DEALER

1. Dealer must maintain a minimum monthly sales volume of 500 sheets Gypsum Board and 750 cartons of tiles.

2. All orders require 100% advance payment.

2.1 The Dealer represents the interest of UNITED GYPSUM (PVT) LTD. in an honest and professional manner and at no time misrepresents UNITED GYPSUM (PVT) LTD's products and services to any third party.

2.2 The Dealer does not engage in selling practices which are unfair, deceptive, misleading, or which misrepresents any aspect of the Manufacturer's product or service, or which unfairly misleads or induces an unwilling customer to make a purchase, or which are otherwise irresponsible or not sanctioned by the Manufacturer.

2.3 The Dealer manages, trains and motivates a competent team of sales personnel to sell UNITED GYPSUM (PVT) LTD. products, and to implement good customer service in accordance with the sales policies of UNITED GYPSUM (PVT) LTD.

2.4 The Dealer allocates a suitable sales and display area for the UNITED GYPSUM (PVT) LTD. products.

2.5 The Dealer will set aside funds to engage in active marketing to promote UNITED GYPSUM (PVT) LTD products within the Dealers given territory.

2.6 The Dealer shall hold UNITED GYPSUM (PVT) LTD. free from and harmless against any and all claims, losses or damages incurred by its agents or sales personnel; and shall be held liable and remain responsible for all their acts and omissions as fully as if they performed the act or omission themselves.

2.7 The Dealer refrains from disclosing or in any way reveal, directly or indirectly, to any person or entity, details or other information contained in these terms and conditions between UNITED GYPSUM (PVT) LTD. and the Dealer.

2.8 The Dealer abides to all governmental regulations in relation to the Dealers regular business performance. (i.e., taxes, licenses, permits, etc.)

2.9 The Dealer binds itself to agree to purchase a to be determined minimum quantity of product before the end of this valid contract effective from the date of signing by both parties.

2.9A Company can make any other Dealer in the area if required / or the sale is dropped in the particular region.

3.0 Dealer will not keep any other company material of the same products which is already provided by United Gypsum Pvt Ltd.

3. RELATIONSHIP

3.1 The Dealer operates itself as an independent contractor and is not in partnership with UNITED GYPSUM (PVT) LTD. No right has been given to the Dealer to enter into any agreement or commitment in the name or behalf of UNITED GYPSUM (PVT) LTD. or to bind UNITED GYPSUM (PVT) LTD. in any respect whatsoever. Neither shall anything contained herein or done in pursuance hereof, constitute the parties as legal representatives of the other for any purpose whatsoever.

3.2 There exists no employer-employee relationship between UNITED GYPSUM (PVT) LTD. and he Dealer. Hence the Dealer, its agents and employees shall under no circumstances be considered as employees, agents, and representatives, of UNITED GYPSUM (PVT) LTD. Neither shall the Dealer make any representation, guarantee or warranty with respect to a UNITED GYPSUM (PVT) LTD. product or service.

3.3 UNITED GYPSUM (PVT) LTD. shall not be responsible for any negligence or default of the Dealer, its agents and employees, and will keep UNITED GYPSUM (PVT) LTD. indemnified against the same and all actions, proceedings, claims, demands, and expenses in relation hereto.

4. SALES INCENTIVES

4.1 The Dealer shall be granted territory exclusivity only after UNITED GYPSUM (PVT) LTD. is satisfied that the Dealer is providing an excepted level of sales and service in a given territory.

4.2 Dealer must achieve target based on the current sale of the market.

5. INTERNET SALES

5.1 UNITED GYPSUM (PVT) LTD. retains the rights to any sale or request that is directly or indirectly related to UNITED GYPSUM (PVT) LTD. registered website. (www.unitedgypsum.com)

6. ADVERTISEMENT AND PROMOTION

6.1 UNITED GYPSUM (PVT) LTD. shall provide sales materials and product brochures to the extent possible, to support the sales of its products and services.

6.2 The Dealer shall not publish any advertisement which may mislead or deceive the public, or may be detrimental to the good name, trademark, logo, goodwill, or reputation of UNITED GYPSUM (PVT) LTD.

6.3 Any advertisement or promotion efforts using the name or trademark logo of UNITED GYPSUM (PVT) LTD. must have the prior approval of UNITED GYPSUM (PVT) LTD.

7. TERMINATION

7.1 The contract is non-assignable, non-transferable and can be terminated by either party with or without thirty (30) days from date of receipt of written notice to the other party.

7.2 UNITED GYPSUM (PVT) LTD. may unilaterally terminate this Contract if the Dealer violates any of the terms and conditions of this Contract, changes the ownership or management of its business, engages in any unfair or unethical trade practices, or commits any fraudulent act.

7.3 Upon termination of this Contract, the Dealer ceases immediately to represent, display, advertise, or promote any association with UNITED GYPSUM (PVT) LTD.

7.4 The Dealer shall be accountable for any outstanding payments still due to UNITED GYPSUM (PVT) LTD. and must remit these payments in full.

8. RENEWAL

8.1 This contract shall be automatically renewed at the end of the term by mutual consent of both parties on an annual basis under the same terms and conditions set forth in this Contract unless otherwise amended and agreed upon by either party in writing thirty (30) days prior to the expiration of the original term.

9. AMENDMENT

9.1 Any amendment. Altercation or modification of this Contract shall not be valid and binding unless and until reduced in writing and signed by the parties hereto.